1744-1745

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 638]

CALIFORNIA

PARTIALLY REVOKING EXECUTIVE ORDER NO. 6361 OF OCTOBER 25, 1933, WITHDRAWING PUBLIC LANDS FOR CLASSIFICATION

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910, c. 421, 36 Stat. 847 (43 U. S. C. sec. 141), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 6361 of October 25, 1933, withdrawing certain public lands in California for classification and pending determination as to the advisability of including such lands in a national monument, is hereby revoked so far as it affects the following-described lands:

SAN BERNARDINO MERIDIAN

T. 1 S., R. 4 E.,
Secs. 19, 20, 23, 24, 25, 26, and 30;
Secs. 33 to 36, inclusive.
T. 3 S., R. 5 E.,
Sec. 2, SW¼SW¼;
Sec. 12.
T. 3 S., R. 6 E.,
Secs. 8 and 18.
T. 7 S., R. 10 E.,
Secs. 1 to 16, inclusive;
Secs. 23 to 26, inclusive;
Sec. 36.

The areas described aggregate 22,462.88 acres, including both public and nonpublic lands.

The lands in T. 7 S., R. 10 E., S. B. M., are included in a withdrawal for reclamation purposes.

The following-described lands shall not become subject to the initiation of any rights or to any disposition under the public-land laws except as provided in an order issued by the Director, Bureau of Land Management, to be published simultaneously herewith, opening such lands to application under the Small Tract Act of June 1, 1938, 52 Stat. 609 (43 U. S. C. sec. 682a), as amended, with a 90-day preference right period for filing such applications by Veterans of World War II and other qualified persons entitled to preference under the act of September 27, 1944, 58 Stat. 747 (43 U. S. C. 279–284), as amended:

SAN BERNARDINO MERIDIAN

T. 1 S., R. 4 E.,
Sec. 19, SE¼SE¼;
Sec. 20, E½, E½NW¼, and SW¼NW¼;
Sec. 23, SW¼NE¼ and NW¼SE¼;
Sec. 30, E½E½ and SW¼SE¼.
T. 3 S., R. 6 E.,
Sec. 18, S½N½ and SW¼SE¼.

The areas described aggregate 963.72 acres.

This order shall not otherwise become effective to change the status of the remaining lands until 10:00 a. m., on the 35th day after the date of this order. At that time the said lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, and selection as follows:

(a) *Ninety-one day period for preference-right filings.* For a period of 91 days, commencing at the hour and on the day specified above, the public lands affected by this order shall be subject only to (1) application under the homestead or the desert-land laws or the Small Tract Act of June 1, 1938, 52 Stat. 609 (43 U. S. C. 682a), as amended, by qualified veterans of World War II and other qualified persons entitled to preference under the act of September 27, 1944, 58 Stat. 747 (43 U. S. C. 279–284), as amended, subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications under subdivision (1) of this paragraph shall be subject to applications and claims of the classes described in subdivision (2) of this paragraph. All applications filed under this paragraph either at or before 10:00 a. m., on the 35th day after the date of this order shall be treated as though filed simultaneously at that time. All applications filed under this paragraph after 10:00 a. m., on the said 35th day shall be considered in the order of filing.

(b) *Date for non-preference-right filings.* Commencing at 10:00 a. m., on the 126th day after the date of this order, any lands remaining unappropriated shall become subject to such application, petition, location, selection, or other appropriation by the public generally as may be authorized by the public-land laws. All such applications filed either at or before 10:00 a. m., on the 126th day after the date of this order, shall be treated as though filed simultaneously at the hour specified on such 126th day. All applications filed thereafter shall be considered in the order of filing.

A veteran shall accompany his application with a complete photostatic, or other copy (both sides), of his certificate of honorable discharge, or of an official document of his branch of the service which shows clearly his honorable discharge as defined in § 181.36 of Title 43 of the Code of Federal Regulations, or constitutes evidence of other facts upon which the claim for preference is based and which shows clearly the period of service. Other persons claiming credit for service of veterans must furnish like proof in support of their claims. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated statements in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in The Land Office, Los Angeles, California, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations, and applications under the desert-land laws and the said Small Tract Act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to The Manager, Land Office, Los Angeles, California.

OSCAR L. CHAPMAN,
Secretary of the Interior.

APRIL 24, 1950.

[F. R. Doc. 50-3594; Filed, Apr. 27, 1950; 8:45 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Production and Marketing Administration

[7 CFR, Part 923]

[AO 224]

HANDLING OF IRISH POTATOES GROWN IN PENNSYLVANIA

NOTICE OF HEARING WITH RESPECT TO PROPOSED MARKETING AGREEMENT AND ORDER

Pursuant to the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.; 61 Stat. 202, 707; 62 Stat. 1247; 63 Stat. 1051), and in accordance with the applicable rules of practice and procedure governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), notice is hereby given of a public hearing to be held in the Federal Court Room, Post Office Building, 3rd and Walnut Streets, Harrisburg, Pennsylvania, beginning at 9:30 a. m., e. s. t., May 22, 1950, with respect to a proposed marketing agreement and order regulating the handling of Irish potatoes grown in Pennsylvania. The proposed marketing agreement and order has not received the approval of the Secretary of Agriculture.

The public hearing is for the purpose of receiving evidence with respect to economic and marketing conditions which relate to the provisions of the proposed marketing agreement and order.

The State Production and Marketing Administration Committee of Pennsylvania requested a hearing on the following proposed marketing agreement and order regulating the handling of Irish potatoes grown in the proposed production area.